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**Global Affairs
CANADA**



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Privileged Instructions**Fundamental Principles**

- Canadian Arctic claims extend to the North Pole.
- The Northwest Passage traverses Canadian internal waterways and not an international strait.

Desired End States

- PRIMARY: Restore Canada's place as an international Arctic leader.
- ALTERNATE: Ensure that Canada and our Arctic residents are safe, secure, and well-defended.
- Additional details tied to end states above:
 - Promote economic utilization of the Northwest Passage with Canadian control.
 - Defend Canadian interests in the Arctic including military, economic, and conservation efforts.
 - Promote beneficial trade relations with other Arctic powers.
 - Utilize and support international organizations focused on the Arctic.

Primary Guidance Background

- The Arctic region is an important crossroad where issues of climate change, international trade, and global security meet. With melting sea ice come the opening of new shipping lanes and put northern natural resources within reach. The increases in commercial traffic and tourism raise safety and security challenges.
- Canada played a key role in the Ottawa Declaration that created the Arctic Council. Canadian leadership also contributed to the Arctic Council's inclusion of Indigenous peoples' organizations. Their inclusion on cooperation, sustainable development, and environmental protection of the Arctic region is important.
- We support a rules-based international order in the Arctic that prioritizes human and environmental security and meaningful engagement of Arctic and northern peoples, especially Indigenous peoples.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

GENERAL: Below are our negotiation positions during this conference. Deviations from these instructions are to be conferred with the Foreign Minister prior to negotiating.

The Arctic is central to Canada's national identity, prosperity, security, values, and interests. We are committed to addressing the causes and impacts of climate change, promoting Canada as a leader in Arctic science and research, and working with international partners to reach our goals in the region (see Arctic and Northern Policy Framework in references). A strengthening of the rules-based international order in the Arctic must occur and Arctic boundaries must be more clearly defined.

Working through/with the Arctic Council member states is key to sustainable progress on any Arctic decision. Until the Arctic Council has more governance powers work closely with each member to sure up bilateral agreements.

Expect that the United States will not engage in bilateral negotiations with China or Russia. As their closest ally we should act as an intermediary, if necessary, to move negotiations along. Utilize the United States' insistence on freedom of navigation through the Northwest Passage as leverage for their compromising on other positions.

China's activities in the Arctic have been steadily growing. The economic advantages, for their involvement in the Arctic, must be balanced with prudent management of their relationship(s) with Arctic nations. Promote the NWP as the shortest route between Asia and Europe and that they accept Canadian control over the passage.

Territory

We have a duty to protect our nation against foreign aggression as well as maintain control over our territory.

We honour the delineation of the different waters and zones defined by UNCLOS. Except for the U.S., the other Arctic states are signatories. Our EEZ and continental shelf claims overlap with the Denmark, Russia, and the U.S. We must keep our interests on the rightful ownership of these areas as governed by international law.

We must define more clearly our marine areas and boundaries in the Arctic. Our most significant dispute lies between us and the U.S. over the Beaufort Sea. While minimizing tensions work to resolve the dispute. Our position is to follow the 141st meridian line from the land out into the sea. The U.S. favours the equidistance principle. Until this is resolved the U.S. must not issue exploration leases in the disputed region.

The NWP traverses through our Canadian Archipelagic waters and passage through these waters constitutes transiting our internal waters, in accordance with UNCLOS. The U.S. believes it should be considered an international strait and the right of innocent passage rules and freedom of navigation apply.

Navigation remains difficult and hazardous. Unregulated vessel traffic and accidents could have devastating impact on the Arctic and northern people. As an internal Canadian waterway, we will continue to manage vessel traffic and ensure navigation is conducted in accordance with our rigorous safety and environmental protection standards. Any claims that this passage is an international strait erodes our rights and we fear losing control over our sovereign waters in the "high north."

We have automatic permission for transits for U.S. military vessels in place. We have operated under the 1988 Arctic Cooperation Agreement with the U.S. Under this agreement, the U.S. does not recognize the passage as internal waters. If the route opens for year-round usage, we will still maintain our stance on it being internal waters. The threats to navigation and the environment will remain high and we will continue to regulate vessel traffic.

The Lomonosov Ridge geologic study shows signs that it is a part of our continental shelf. The planting of a Russian flag by a submarine under the ice at the North Pole in 2007 is not in keeping with international norms. Until the CLSC determine Canada's rightful claims to the Lomonosov Ridge, Russia, and other nations, should cease such sabre rattling.

Red Line:

Not maintaining full control of the NWP as a Canadian trade route through Canadian internal waters.

Militarization

The increased militarization of the Arctic threatens the current peace and stability in the region. With the growing access to seaways and thawing of traditionally permafrost areas military development in the Arctic has increased throughout.

Potential encroachment into the Canadian High Arctic regions is of concern. The response time to thwart any encroachment is slow. The Arctic and Northern Policy Framework states "The qualities that make the Canadian Arctic and North such a special place...also pose unique security challenges, making it difficult to maintain situational awareness and respond to emergencies or military threats when and where they occur." With the growing capability of both China and Russia to operate in the Arctic we must assess our ability to respond to a military crisis.

The Canadian Armed Forces play a key role in demonstrating Canada's sovereignty across all its territory. Our establishment of a permanent presence in the Northwest Territories, and detachments in Iqaluit, Nunavut, and the Yukon all show our resolve in protecting our Arctic front.

We need to work, through international organizations, to ensure peace continues. We must encourage NATO nations to increase combined capacity to conduct Arctic operations. Highlight the need for all NATO allies to assist in protecting member states from external aggression.

As a NORAD partner with the U.S., we must leverage their surveillance capabilities to monitor the Arctic. Our capacity to real-time monitor the polar region is limited, and we are reliant on the U.S. for assistance.

Through the Arctic Council we must continue to emphasize demilitarizing the Arctic and resolving differences through dialogue and diplomacy and not through might.

Red Line:

- Any foreign fleet establishing patrols in Canadian sovereign waters without our permission.
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Resources

Mineral and non-mineral resources within Canadian waters and land must only be explored, or extracted, by express permission of the Canadian Government. Any speculation, or exploration, in Canadian waters, by others is unacceptable.

Resources within the Canadian economic sphere is for domestic development and distribution. Environmental concerns, coupled with Indigenous People's rights, are Canadian principles that we consider when developing mineral resource projects. We encourage all Arctic nations to consider the same principles when exploiting their resources.

We feel that if managed, in a sustainable manner, Canada's endowment of living, and non-living, marine resources will contribute to the prosperity of all Canadians for generations. A similar approach for the whole Arctic region is desired to preserve the bounty that the Arctic waters have. We are investing significantly in the mapping of energy and mineral potential in the Arctic.

Each Arctic state should manage its own internationally accepted territory's resources. Where there are disputes the parties should resolve their differences through dialogue and within the constructs of international organizations. No third-party governance of the Arctic is required.

Red Line:

Any claims, by other nations, to extend exploration rights and licenses within disputed Arctic areas.

Environment

Canada has been the forefront in protecting the Arctic environment. We are demonstrating stewardship in this magnificent ecological region. Canada is committed to planning and managing Arctic Ocean and land-based activities domestically and internationally in an integrated and comprehensive manner that balances conservation, sustainable use and economic development.

The Canadian North is warming at 3-times the global average. Preservation of the fragile Arctic ecosystem is at risk due to climate change, increased human traffic, and resource extraction. Efforts to extract the resources beneath the Arctic Ocean must be done with an effort towards minimal ecological impact and environmental protection. This balance must be done by all Arctic nations to ensure the whole region is developed smartly.

Arctic nations need to safeguard environmentally delicate areas and be responsive to any oil or gas leaks. If preventative measures, or reactive ones, cannot be guaranteed then we highly encourage reduction of activities until one can ensure no environmental damage.

With the recent banning of commercial fishing, in the Arctic high seas, time will allow further study and understanding of this resource. Monitoring of the ban must be a multilateral effort of the nine nation signatories. The joint programme of scientific monitoring must continue to inform decisions on extension of this moratorium.

All nations must adhere to the Paris Climate Agreement and take further actions to reduce carbon emissions. The delicate tundra of Northern Canada has been greatly affected by climate change. In order to preserve this ecosystem, we insist that China and the U.S., the two largest carbon emitters, take more aggressive action to reduce their carbon footprint.

We propose the creation of environmental protection zones throughout the Arctic. The ecosystem should be protected from human interference and destruction in these zones. All should commit to preserving as much of the Arctic as possible. Only through combined efforts can this ecosystem survive.

Governance

UNCLOS provides sufficient means of dispute settlement among nations. The conflict between UNCLOS, and previous treaties and agreements, provides areas of disagreement between states. We do not accept the premise that the Arctic requires a fundamentally new governance structure or legal framework. Nor do we accept that the Arctic states are unable to appropriately manage the North as it undergoes fundamental change.

The Arctic Council was formed as a high-level forum to provide means for promoting cooperation, coordination, and interaction among the Arctic states. Key elements of governance and security are not discussed during council sessions. We support the Arctic Council, and through which we should engage with others to advance our interests. We need to take a robust leadership role to shape the stewardship and sustainable development of the Arctic.

Red Line:

Any attempt to make China a member state of the Arctic Council.

Population

We recognize the many First Nations communities that populate our country. Through treaty and laws, we acknowledge their right to retain certain powers and self-government. The province of Nunavut was created to give the Arctic tribes better representation in the federal system of government.

In 2019 the Arctic and Northern Policy Framework was enacted. This framework brought together contributions from the federal government, First Nations peoples, territorial and provincial governments. Through this framework we strive for a shared vision where First Nations are “thriving, strong, and safe.” Finding creative ways to provide the same standard of living as all Canadians; through healthcare, jobs, energy, and education, is the framework’s primary focus.

This framework should be a model to other Arctic nations on providing their Indigenous peoples with the freedoms they deserve. Until Greenland gains full sovereignty from the Danish Government, we must tailor their direct involvement in the Arctic Council. With the Greenland population being predominantly Inuit, it places pressure on our representation at the Senior Arctic Officials meetings without our Inuit population participating in the same manor.